

MUTUAL NON-DISCLOSURE AGREEMENT

FORM OF AGREEMENT

THIS MUTUAL NON-DISCLOSURE AGREEMENT is made and entered into by and between the following “**Parties**”:

(Employee Name)	, an individual Kenyan national of ID Number, and of P.O. Box..... “EMPLOYEE”
Contact Information	Phone number: Email: Or such other contact details as shall be notified in writing from time to time.
Shop and Deliver Limited	SHOP AND DELIVER LIMITED , a company incorporated under the laws of Kenya, under company registration number CPR/2010/37880 , of P.O.Box 1145-00606, Nairobi, Kenya, whose registered office is at 3 rd Floor, Mayfair Business Centre, Nairobi, Kenya. (“SHADE”)
Contact Information	Name: Chris Mwirigi Email: Chris@betika.com Or such other contact details as shall be notified in writing from time to time

In order to protect the proprietary rights of the Parties to their confidential information and to protect the confidentiality thereof, the Parties wish to define their rights and obligations with respect to such information by establishing the basis upon which such information will be disclosed.

THE PARTIES HEREBY AGREE THAT

- (1) All disclosures of confidential Information shall be governed by this Form of Agreement and the attached Confidentiality Terms (together, **“the Agreement”**).
- (2) This Agreement and any non-contractual obligations arising out of or in connection with it shall be governed by Kenyan law and the Kenyan courts shall have exclusive jurisdiction to settle any dispute which may arise from or in connection with it.

EXECUTED by the Parties on the date first above written.

Signed by the said [Employee Name]:
.....

Signed.....

Position.....

Date.....

Signed for and on behalf of **SHOP AND DELIVER LIMITED** by
its duly authorised representative:-

Signed.....

Full Name

Designation.....

Date.....

CONFIDENTIALITY TERMS

1. DEFINITION OF CONFIDENTIAL INFORMATION AND OTHER TERMS

- a) **"Affiliate"**, with respect to any Person, means any other Person that, directly or indirectly, is controlled by, controls or is under common control with that Person, including, without limitation, any officer, director, manager, general partner, controlling stockholder or managing member of any Person.
- b) **"Agreed Purpose"** means internal evaluations of a proposed transaction or business relationship between the Parties.
- c) **"Confidential Information"** means any information concerning the Disclosing Party's or any of its Affiliates' business, property or technology that has commercial and other value related to the Disclosing Party's business, is confidential in nature and not generally known to the public and is disclosed by one Party to the other (whether before or after the date of this Agreement and whether in writing, verbally or by any other means and whether directly or indirectly) including, without limitation, any information relating to the Disclosing Party's products, services, operations, processes, plans or intentions, product information, know how, design rights, trade secrets, market opportunities, financial information and data, business plans, information and descriptions of new products and new product development, business strategies, marketing plans, customer lists, price lists, cost information, and information about employees.
- d) **"Control"**, with respect to any Person, means the power, directly or indirectly, to direct the management and policies of that Person.
- e) **"Disclosing Party"** shall mean the party disclosing Confidential Information to the Receiving Party and shall include any Related Person, as the case may be.
- f) **"Person"** shall be broadly interpreted to include, without limitation, any individual, corporation, company, association, partnership, joint venture,

trust, estate, governmental agency or other entity of whatsoever kind or nature.

- g) **"Receiving Party"** means the party to this Agreement which is in receipt of Confidential Information disclosed by the Disclosing Party pursuant to the terms of this Agreement and shall include any Related Person, as the case may be;
- h) **"Related Person"** shall mean, in respect of any of the Disclosing Party or the Receiving Party, as the case may be, their Affiliates, ultimate beneficial owners, directors, and employees at any time during the period in which the provisions of this Agreement apply."

2. NON DISCLOSURE AND NON USE OF CONFIDENTIAL INFORMATION

The Receiving Party shall not disclose any Confidential Information of the Disclosing Party to any third party (other than to its employees and representatives as provided for below), and shall only use Confidential Information of the Disclosing Party in connection with the Agreed Purpose. The Receiving Party will treat all Confidential Information of the Disclosing Party with the same degree of care as it accords its own Confidential Information, but in no case less than reasonable care. The Receiving Party will disclose Confidential Information only to those of its employees and representatives who need to know such information and who are bound by confidentiality obligations that are similar to those which protect the Confidential Information under this Agreement.

The Receiving Party agrees that:

- a) it will not copy, reproduce or store in an unprotected retrieval system or data base the Confidential Information, except as may be required in connection with its internal evaluations of a proposed transaction or business relationship between the Parties;
- b) it will not (try to) access any systems and/or data outside the scope of the Agreed Purpose; and
- c) it will be responsible for any breach of this Agreement by its employees and representatives.

The Receiving Party shall monitor, enforce and be responsible for, compliance with this provision by its employees and representatives and the Receiving Party will be liable and responsible for any breach of this Agreement by itself and/or any of its employees and representatives.

3. EXCEPTIONS FROM NON DISCLOSURE AND NON USE OBLIGATIONS

This Agreement does not apply to Confidential Information:

- a) to the extent that the Confidential Information is or comes into the public domain other than by breach of this Agreement;
- b) which the Receiving Party can show by its written or other records was in its possession prior to receipt from the Disclosing Party and which had not previously been obtained from the Disclosing Party or another person under an obligation of confidentiality;
- c) which the Receiving Party obtains or has available from a source other than the Disclosing Party without breaching any obligation of confidentiality;
- d) to the extent that the Disclosing Party has consented in writing to the disclosure of the Confidential Information by the Receiving Party.

In addition, any disclosure of any Confidential Information by a Party either (i) in response to a valid order by a court or other governmental body, or (ii) otherwise required by law or applicable regulation, shall not be considered to be a breach of this Agreement or a waiver of confidentiality for other purposes; provided, however, that, to the extent legally permissible and reasonably possible, the Receiving Party in any such instance shall provide prompt prior written notice thereof to the Disclosing Party and shall comply with any applicable protective order or equivalent and provide reasonable assistance in obtaining any such order.

4. NO PROMOTION

Without prior written agreement, the Parties shall not, and shall cause their representatives not to, (a) disclose to any person or entity the existence of this Agreement, that discussions or negotiations with respect to any potential transaction or relationship

are taking place or the nature or the outcome of such discussions or negotiations; (b) represent, directly or indirectly, whether orally or in writing, that any transaction or potential transaction, or any product or service provided by either Party or any of its representatives has been approved or endorsed by the other Party or any of its representatives; or (c) use, or permit the use of, the name of a Party or any of its representatives for any promotional purpose or any other activities, including in any marketing materials, publications, advertising or press releases, of the other Party.

5. PERSONAL DATA

The parties acknowledge that the Confidential Information may contain personal data and that processing of such data may be regulated by applicable law. Parties are aware of and shall observe the rules and regulations with regard to personal data and parties acknowledge their own responsibility to comply with those rules and regulations. Each party acknowledges and agrees that some or all of the personal data it sends to the other party may be identical or substantially similar to data obtained, owned or licensed by such party and nothing in this Agreement shall restrict the receiving party from using the personal data it has in its possession in any manner.

6. FURTHER UNDERTAKINGS

- a) All rights to the Confidential Information disclosed to the Receiving Party under this Agreement shall remain the exclusive property of the Disclosing Party unless otherwise agreed between the Parties and no license or other rights to Receiving Party is granted or implied hereby. The Receiving Party obtains no right or license pursuant to this Agreement under any copyright, patent, trade secret or other intellectual property right of the Disclosing Party, except solely for the use expressly permitted herein.
- b) Each Party undertakes, within 14 days of receipt of a written request of the other Party, (i) to return to the other Party all documents and other material in its possession, custody or control that contain any Confidential Information of the other Party or (ii) to destroy by shredding or incineration all documents and other material in its possession, custody or control which reflect or have been generated from any part of the other

Party's Confidential Information and to certify to the other Party that this has been done.

- c) Neither Party accepts responsibility for or makes a representation or warranty, express or implied, with respect to the truth, accuracy, completeness or reasonableness of the Confidential Information. Neither Party is liable to the other Party or another person in respect of the Confidential Information or its use.
- d) This Agreement or the disclosure or receipt of Confidential Information under this Agreement shall not constitute or imply any promise to enter into any further agreement or arrangement by either of the Parties.

7. TERM AND TERMINATION

- a) This Agreement shall continue in force and effect for ten (10) years from and including the Effective Date, and thereafter shall terminate save always that clauses 1, 2, 3, 5, 6, 7 and 8(f) shall expressly survive termination.

8. GENERAL

- a) This Agreement constitutes the whole agreement between the Parties, and supersedes all previous agreements between the Parties, relating to its subject matter.
- b) The Parties understand and agree that in the event any part, term or provision of this Agreement is held to be invalid or legally unenforceable, the validity of the remaining parts, terms or provisions shall not be affected, and the rights and obligations of the Parties shall be construed and enforced as if the Agreement did not contain the particular part, term, or provision held to be invalid. No failure or delay by either Party in exercising any right, power, or remedy under this Agreement will operate as a waiver of any such right, power or remedy. No waiver or modification of any provision of this Agreement will be effective unless in writing and signed by both Parties.
- c) Nothing in this Agreement is intended to, or shall be deemed to, establish any partnership or joint venture between the Parties, or to constitute a

Party the agent of the other Party, or to authorise a Party to make or enter into any commitments for, or on behalf of, the other Party. The parties further acknowledge and agree that they each reserve the right, in their sole and absolute discretion, to reject any and all proposals and to terminate discussions and negotiations with respect to a transaction or business relationship at any time.

- d) This Agreement shall be binding upon the legal representatives, successors and permitted assigns of the Parties, but is otherwise not transferable or assignable by a Party save with the written consent of the other Party.
- e) This Agreement may be executed in counterpart, each of which together shall constitute one and the same instrument and the Parties may execute this Agreement by signing in counterpart. To the extent permitted by applicable law, an electronic signature of any Party shall be deemed to be an original.
- f) The Parties acknowledge and agree that money damages may not be a sufficient remedy for any breach of their respective obligations under this Agreement and that each shall be entitled to seek injunctive relief as a remedy for any such breach by the other party. Such remedy will not be deemed the exclusive remedy for a breach of the Receiving Party's obligations under this Agreement, but will be in addition to all other available legal and equitable remedies.
- g) The persons executing this Agreement warrant that they have the authority to bind their respective Party to the terms and conditions embodied in this Agreement.

9. NOTICE

Any notice required by this Agreement or given in connection with it, shall be in writing and shall be given to the appropriate party by personal delivery or by certified mail, postage prepaid, or recognised overnight delivery services or by email to the relevant Party using their Contact Information provided.